

Uttarakhand State Legislative Assembly Miscellaneous (Amendment) Act, 2018

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State of Uttarakhand - Act

Uttarakhand State Legislative Assembly Miscellaneous (Amendment) Act, 2018

UTTARAKHAND

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Uttarakhand State Legislative Assembly Miscellaneous (Amendment) Act, 2018

Act 15 of 2018

Published on 1 January 2018

Commenced on 1 January 2018

[This is the version of this document from 1 January 2018.]

[Note: The original publication document is not available and this content could not be verified.]

Uttarakhand State Legislative Assembly Miscellaneous (Amendment) Act, 2018

(Uttarakhand Act

No.15 of 2018

)

An act further to amend the Uttarakhand State Legislative Assembly (Members Emoluments and Pension) Act, 2008, the Uttar Pradesh State Legislative (Officers Salaries and Allowances) Act, 1952 (As applicable in Uttarakhand State) and the Uttarakhand Ministers (Salaries, Allowances and Miscellaneous Provisions) Act, 2009

It is hereby enacted by the Uttarakhand State Legislative Assembly in the Sixty-ninth year of the Republic of India as follows -

1.

Short title and commencement.

(1)

This Act may be called the Uttarakhand State Legislative Assembly Miscellaneous (Amendment) Act, 2018.

(2)

It shall be deemed to have come into force on April 1, 2017.

2.

Amendment of Section 3.

- In Section 3 of the Uttarakhand State Legislative Assembly (Members Emolument and Pension) Act, 2008 (hereinafter referred as principal Act), in subsection (1), for the words "ten thousand" the words "thirty thousand" shall be substituted.

3.

Amendment of Section 4.

- In Section 4 of the principal Act, for the words "Sixty thousand", the words "one lac fifty thousand" shall be substituted.

4.

Amendment of Section 4-A.

- In Section 4-A of the principal Act, for the words "three thousand", the words "twelve thousand" shall be substituted.

5.

Amendment of Section 5.

- In Section 5 of the principal Act -

(a)

In sub-section (1) for the words "two lac seventy thousand", the words "three lac twenty five" shall be substituted.

(b)

In sub-section (2) for the words "one lac" the words "two lac seventy two thousand" shall be substituted.

6.

Amendment of Section 11.

- In Section 11 of the principal Act -

(a)

In sub-section (1), for the words "two thousand", the words "three thousand" shall be substituted.

7.

Amendment of Section 12.

- In Section 12 of the principal Act, for the words "two thousand", the words "twelve thousand" shall be substituted.

8.

Substitution of Section 15.

- The Section 15 of the principal Act shall be substituted as follows -

"The State Government may provide for grant of repayable advance of a sum not exceeding Rupees Fifty lac to any person who is a member, whether or not holds any office referred to in clause if) of Section 2, or who had held office as a member of the Assembly, either for construction or purchase of housing accomodation and rupees not exceeding fifteen lacs for purchase of vehicle:

Provided that the rate of interest shall be according to the rate of State Bank of India.

Provided further that if advance with Interest is returned by any member then facility of readvance may be permitted on request of such member."

9.

Substitution of Section 17.

- The Section 17 of the principal Act shall be substituted as follows -

"Every member or ex-member, whether or not he holds any office mentioned in clause (f) of Section 2. rate of reimbursement of the medical expenditure of himself and the family members shall be permissible the rates of Central Government Health Service (C.G.H.S.) and facility of treatment in foreign shall be permissible on reference by the All India Institute of Medical Sciences."

10.

Amendment of Section 20.

- In Section 20 of the principal Act -

(a)

In sub-section (1) for the words "twenty thousand", the words "forty thousand" shall be substituted.

(b)

In existing provision, where words "one thousand" occurs, the words "two thousand" shall be substituted.

11.

Amendment of Provision following after Explanation 2 of Section 23-A.

- In Provision following after Explanation 2 of Section 23-A of the Principal Act, for the words "ten thousand", the the words "twenty thousand" shall be substituted.

The Uttar Pradesh Legislature (Officers Salaries and Allowances) Act, 1952

(As applicable in Uttarakhand State)

12.

Amendment of Section 2.

- In sub-section (1) of Section 2 of the Uttar Pradesh State Legislature (Officers' Salaries and Allowances) Act, 1952 (As applicable in Uttarakhand State), in context of the Uttarakhand State, in the monthly salary of Speaker and Deputy Speaker for the words "fifty four thousand" the words "One lac ten thousand" shall be substituted.

The Uttarakhand Ministers (Salaries, Allowances and Miscellaneous Provisions) Act, 2009

13.

Amendment of Section 13.

- In Section 13 of the Uttarakhand Ministers (Salaries, Allowances and Miscellaneous Provisions) Act, 2009 (hereinafter referred to as principal Act) -

(a)

In sub-section (1), for the words "forty five thousand", the words "ninety thousand" shall be substituted.

(b)

In sub-section (2), for the words "forty two thousand", the words "eighty four thousand" shall be substituted.

(c)

In sub-section (3), for the words "thirty six thousand" the words "seventy two thousand" shall be substituted.

14.

Amendment of Section 4.

- In sub-section (3) of Section 4 of the principal Act, for the words "thirty thousand", the words "forty thousand" shall be substituted.

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